

of a thing with the intention that it is to be taken
[*402] * either wholly or in part, in extinguishment of some prior (legal) claim of the donee (*a*).

2. **Persons loco parentis.** — The doctrine of Ademption and Satisfaction applies only as between parents (whether father or mother) (*b*), or persons *loco parentis* on the one hand, and children on the other. The doctrine does not hold as between strangers (*c*), or as between husband and wife (*d*), or as between brothers, or as between grandfather and grandchild, or as between uncle and nephew, or as between any other relatives than as above. But a brother may by his conduct place himself *loco parentis* to a brother (*e*), and a grandfather (*f*), uncle (*g*), or other relative or connection as a stepfather (*h*), may place himself *loco parentis* to a grandchild, nephew, or other relative or connection; and this though the person *loco parentis* has children of his own (*i*), and though the actual father be living and the child be resident with him and is maintained by him (*j*). So a *putative* father is not in law the parent of the illegitimate child (*k*), but he may place himself *loco parentis* by a course of conduct. And Lord Thurlow, in speaking of a parent's provision for a child, observed generally, "as to its being considered as the payment of a debt, the law does not

(*a*) *Chichester v. Coventry*, 2 L. R. H. L. 95, *per* Lord Romilly.

(*b*) *Finch v. Finch*, 1 Ves. jun. 534.

(*c*) *Powel v. Cleaver*, 2 B. C. C. 499. But even as between strangers "if a legacy appears on the face of the will to be bequeathed for a particular purpose, and a subsequent gift appears by proper evidence to have been made for the same purpose, a presumption is made *prima facie* in favour of ademption," *per* Lord Selborne, L. C.; *Re Pollock*, 28 Ch. D. 552, 556.

(*d*) *Richardson v. Elphinstone*, 2 Ves. jun. 463; *Haynes v. Mico*, 1 B. C. C. 129; *Couch v. Stratton*, 4 Ves. 391.

(*e*) *Monck v. Monck*, 1 B. & B. 298.

(*f*) *Powys v. Mansfield*, 3 M. & Cr. 359; 6 Sim. 528; *Campbell v. Campbell*, 1 L. R. Eq. 383; *Pym v. Lockyer*, 5 M. & Cr. 29; and see *Roome v. Roome*, 3 Atk. 183.

(*g*) *Shudal v. Jekyll*, 2 Atk. 516.

(*h*) *Curtin v. Evans*, 9 I. R. Eq. 553.

(*i*) *Monck v. Monck*, 1 B. & B. 298.

(*j*) *Powys v. Mansfield*, 3 M. & Cr. 359 (see 368), reversing S. C. 6 Sim. 528; *Pym v. Lockyer*, 5 M. & Cr. 29; *Shudal v. Jekyll*, 2 Atk. 518.

(*k*) *Ex parte Pye*, 18 Ves. 140; *Grave v. Earl of Salisbury*, 1 B. C. C. 425; *Wetherby v. Dixon*, 19 Ves. 412, *per Cur.*; *Smith v. Strong*, 4 B. C. C. 493; *Jeacock v. Falkener*, 1 B. C. C. 295.